

REQUEST FOR PROPOSAL
RFP #26/27-01
ARMED SECURITY GUARD SERVICES

Smithtown Central School District
26 New York Avenue
Smithtown, NY 11787

TABLE OF CONTENTS

I.	Notice to Proposers
II.	Instructions to Proposers
III.	Conditions of the Contract
IV.	Insurance Certification
V.	Insurance Requirements
VI.	Technical Specifications and Conditions
VII.	Qualifications of Proposers
VIII.	Statement of Proposer's Qualifications
IX.	Information Sheet
X.	References
XI.	Conflict of Interest and Non-Collusive Certificate
XII.	Non-Collusive Certification
XIII.	Iran Divestment Act
XIV.	Hold Harmless Agreement
XV.	Sexual Harassment Prevention Certification Form
XVI.	Form of Proposal
XVII.	School Locations
XVIII.	Prevailing Wage Rate Schedule
XIX.	Proposer Response Form
XX.	Form of Agreement (for informational purposes only)
XXI.	Successful Contractor's Attestation/Certification (for informational purposes only)
XXII.	W-9 Form

RFP Submissions Must Be Received By:

11:00 A.M. on May 21, 2026
in the Purchasing Department at
Smithtown Central School District
26 New York Ave. Smithtown, NY 11787

Refer questions to:
Gina Klug, Purchasing Agent
gklug@smithtown.k12.ny.us
(631) 382-2150

SMITHTOWN CENTRAL SCHOOL DISTRICT
26 New York Avenue
Smithtown, New York 11787

NOTICE TO PROPOSERS

The Board of Education of the Smithtown Central School District (in accordance with Section 103 of Article 5-A of General Municipal Law) hereby invites the submission of proposals for **RFP #26/27-01 ARMED SECURITY GUARD SERVICES (PRC #2026900471)**. Proposals will be received until 11:00 A.M. on May 21, 2026 at the Smithtown Central School District Purchasing Department, 26 New York Avenue, Smithtown, New York 11787. Proposal packages and addenda (as applicable) may be obtained at the same office daily between 8:00 A.M. and 4:00 P.M, except Saturdays, Sundays and holidays. The Board of Education reserves the right to reject any or all proposals, or to accept part of any proposal. For additional information contact the Purchasing Department at 631-382-2150.

Dated: April 16, 2026

Gina Klug
Purchasing Agent

**BOARD OF EDUCATION
SMITHTOWN CENTRAL SCHOOL DISTRICT
26 NEW YORK AVENUE
SMITHTOWN, NEW YORK 11787**

INSTRUCTIONS TO PROPOSERS

1. Proposers are invited to submit a proposal on the work described in the Proposal documents. The proposal must be on the Proposal Form included in these Proposal documents and must be made in accordance with these instructions. Proposers must be thoroughly familiar with the work to be performed.
2. Carefully inspect all general and special provisions in the Proposal documents.
3. Complete all forms. Be sure to sign in ink in all required places.
4. **One (1) original and two (2) copies of the Proposal must be submitted.**
5. All materials submitted to the District pursuant to this proposal shall become the property of the District and will not be returned to the proposer. The proposer is responsible for making its own copies of any or all parts of this document for its file.
6. Proposals must be presented in a sealed envelope addressed to:

**Gina Klug, Purchasing Agent
Smithtown Central School District
26 New York Avenue
Smithtown, New York 11787**

**RFP No. 26/27-01 Armed Security Guard Services
Smithtown Central School District**

7. Proposals will be received **until 11:00 a.m. prevailing time on May 21, 2026** at the Purchasing Office, 26 New York Avenue, Smithtown, New York 11787 by the Purchasing Agent or a designated representative. Proposals shall be submitted in a sealed envelope. The Proposal number shall be clearly written on the front of the envelope.
8. All questions, requests for clarification or information about the proposal specifications or any question related to the proposal must be submitted in writing no later than **12:00 p.m. on May 14, 2026**. All questions or requests for clarification or information should be submitted to: **Gina Klug, Purchasing Agent**, Smithtown Central School District, 26 New York Avenue, Smithtown, New York 11787 by email at gklug@smithtown.k12.ny.us. It is the proposer's responsibility to ensure that the question(s) submitted have been received by the question deadline. Any proposer shall be precluded from asserting any inconsistency after said time.

9. No interpretation of the meaning of the specification or other Contract document will be made to any proposer orally. Notice of any and all interpretations and any supplemental instructions will be sent to all Proposers of record by the District or its designee in the form of addenda to the specifications. All addenda so issued will be sent by electronic mail and shall become a part of the Contract documents. Failure of any proposer to receive any such addendum or interpretation shall not relieve any proposer from any obligations under his/her proposal submitted.

10. No proposal will be considered unless it is received and in hand on the specified date and at the specified time and address at which proposals are to be opened. Any proposer submitting proposals by mail or private delivery service must assume the risk of any delay in the mail or handling of proposals by employees of the U.S. Postal Service, private delivery service or the District. All proposals received after the designated date and time will be refused and returned unopened.

11. The submission of a proposal will be construed to mean that the proposer is fully informed as to the extent and character of the work, supplies, materials, or equipment required and a representation that the proposer can furnish the work, supplies, materials, or equipment satisfactorily in complete compliance with the specifications.

12. Proposals shall remain open for a period of forty-five (45) days following the date of the proposal opening. Proposers agree that the prices submitted will remain firm for an additional forty-five (45) days thereafter, unless the District receives written notice to the contrary.

13. The Board of Education reserves the right to reject any and all proposals and to waive any informalities in any proposal. The District reserves the right to make an award on an item by item, group of items, or total award basis whichever is in the best interest of the District.

14. As required by the specifications, Proposers must use the attached Proposal form indicating the cost of providing labor and materials necessary to provide the armed security guard services needed pursuant to this contract. Proposals submitted on any form other than the proposal form are not acceptable and will be rejected. Illegible or vague proposals will be rejected. All signatures must be written. Facsimile, printed, or typewritten signatures are not acceptable.

15. Proposers must enter their pricing in the designated fields on the Proposal Sheet for each item they wish to bid on. Prices must be net and inclusive of all labor and associated charges.

16. Where so indicated by the makeup of the Proposal Form, sums shall be expressed in both words and figures and in case of discrepancy between the two, the written amount will govern. Failure to complete the Proposal Form in its entirety may result in the proposal being deemed not responsive.

17. If two (2) or more Proposers submit identical proposals as to price, the decision of the Board to award a Contract to one (1) such proposer shall be final. No proposal shall be considered nor will any contract be awarded to any proposer in arrears to the District upon any debt or contract or who is a defaulter as surety or otherwise upon any obligation to the District, or who is deemed irresponsible or unreliable by the District.

18. **A proposer shall not make any stipulations on the Proposal Form or qualify its proposal in any way.** No proposal will be considered which purports to qualify, limit, amend or omit any requirement of the Proposal Documents. No alteration, erasure or addition is to be made to the typewritten matter. Any deviations from the conditions and specifications will constitute sufficient grounds for rejection of the proposal. No oral, telegraphic or telephonic proposals or modifications will be considered. The School District shall have the right to reject proposals that contain conditions, omissions, exceptions or modifications.

19. A proposal shall include the legal name of proposer and a statement whether the proposer is a sole proprietor, a partnership, a corporation or any other legal entity, and shall be signed by the person or persons legally authorized to bind the proposer to a contract. All required signatures shall be handwritten in ink with the full name of the person executing same. Initials, stamps, photocopies or other copies or company names may not be used in lieu of any required signature. A proposal by a corporation shall also give the state of incorporation and have the corporate seal affixed on the signature pages of each Form of Proposal. A proposal by an agent shall have a current Power of Attorney attached certifying the agent's authority to bind the proposer.

20. Sales to school districts are not affected by any fair trade agreements. (General Business Law).

21. No charge will be allowed for Federal, State or municipal sales and excise taxes since the District is **EXEMPT** from such taxes. The price proposal shall be net and shall not include the amount of any tax. The successful proposer shall be fully responsible for any and all applicable taxes for the work and/or services performed under the contract.

22. **PROPRIETARY INFORMATION:** All information included in any Proposal becomes public information including any and all information that is proprietary in nature. The District shall be held harmless from any claims arising from the release of proprietary information.

23. **BROCHURES:** Proposals shall include adequate brochures, latest printed specifications and advertising literature, describing the products offered in such fashion as to permit ready comparison with our specifications on any item-by-item basis where applicable. Web site information may be included for specific products or services being offered.

24. All supplemental agreements necessary to perform the services herein must be included in the proposal submission. Such agreements remain subject to review and

modification by District counsel and final approval by the Board of Education. In the event of a conflict between the proposer's agreement and the terms of this proposal, the proposal terms shall prevail.

25. It is the proposer's responsibility to familiarize themselves with the actual work and the locations where such work is to be performed prior to submitting a proposal. Submission of a proposal shall constitute acknowledgement that the proposer has satisfied this requirement. Failure to do so will not relieve the proposer from any requirements and/or obligations incurred as a result of his/her proposal.

26. **PREVAILING WAGE:** New York State law requires the payment of prevailing wages for the work to be performed hereunder. The successful contractor must comply with all New York State Labor Laws, including but not limited to, prevailing wage rate requirements. The prevailing wage rate schedule (PRC #2026900471) for the work described and required herein is attached hereto. The Proposers shall be responsible for paying the prevailing wage rate applicable for the work described in these Proposal documents for the time period associated with the contract term in accordance with the prevailing wage rate schedules issued by the New York State Department of Labor for said time period.

27. As per Article 8 and 9 of the New York State Labor Laws, wages paid for the performance of this contract shall not be less than those listed as minimum by the New York State Commissioner of Labor for the occupants listed. As per Article 8, Section 220, New York State Labor Law, every proposer and sub-proposer shall submit to the Department of Jurisdiction (Smithtown Central School District), within thirty (30) days after issuance of its first payroll, and every thirty (30) days thereafter, a transcript of the original payroll record, as provided by Article 8, subscribed and affirmed as true under penalties of perjury. The Smithtown Central School District shall be required to receive and maintain such payroll records.

28. The District will endeavor to make an award within forty-five (45) days of the date of the proposal opening and all proposals shall remain firm during that time frame. The District further reserves the right to make an award following this period to any proposer who has not provided written notice to the District that its proposal has been withdrawn in accordance with section 103 of the General Municipal Law.

29. Award will be made to the proposer, as will best promote the public interest, taking into consideration factors including but not limited to the reliability of the proposer.

30. The Board of Education shall award a contract to the proposer whose submission conforms to the RFP and presents the greatest value to the District, all evaluation criteria considered.

31. The District reserves the right to reject all proposals; to reject any proposal in whole or in part; to waive technical defects, qualifications, irregularities, and omissions if in its judgment the best interests of the District will be served; and to reject proposals.

32. The placing in the mail of a notice of award to the successful proposer, to the address given in the proposal, will be considered sufficient notice of acceptance of the proposal.

33. The awarded vendor must comply with all New York State Labor Laws.

34. Each and every provision of law and clause required by law to be inserted herein and the Contract shall be deemed to be inserted herein and the Contract shall be read and enforced as though it were included herein, and if through a mistake or otherwise, any such provision is not inserted or is not correctly inserted, then upon the application of either party, the Contract shall forthwith be physically amended to make such insertion.

CONDITIONS OF THE CONTRACT

1. Each and every provision of the Instructions to Proposers is incorporated by reference herein as if fully restated herein.
2. The contract shall commence upon award and remain in effect through June 30, 2027, unless earlier terminated as provided for herein. The Board of Education reserves the right to renew this agreement for additional one-year periods not to exceed five (5) years upon the same terms and conditions. On the anniversary date(s) of the second and any subsequent year of the contract, the awarded vendor may increase prices, subject to the limitations imposed by New York State's property tax cap law, for recurring charges by an amount equal to the current percentage used by the United States Department of Labor Bureau of Labor Statistics New York -Northern New Jersey consumer price index for all Urban Consumers (CPI- U) -May - which is usually published in June of each year, not to exceed 2%. In the event a CPI, as calculated using the above research method, has a negative value, the price of the commodity/service will be reduced equivalent to the calculated value. The District must be notified in writing by the awarded vendor of any request for a price increase at least 60 days before the anniversary date.
3. Proposers shall have been engaged in the business of providing armed security guard services as described in the specifications. Proposers shall provide the District with documentation evidencing the following: (1) successful performance and provision of armed security services; (2) resources (i.e., sufficient financial support, equipment, supervision, training and organization) available internally to provide the armed security guard services as described herein within mandated time frames; and (3) an established satisfactory record of performance of similar services for a period of five (5) years or more. Proposals that fail to include this information may be rejected. Proposer may be required to furnish a description of its experience with contracts of comparative size, complexity, and cost, together with documentary evidence showing that said contracts were completed to the Owner's satisfaction and were completed in a timely fashion.
4. The successful proposer shall not assign or subcontract any part of this contract to a sub-contractor without the prior written approval of the District.
5. Proposers' offices must be staffed by competent company representatives who can be contacted twenty-four (24) hours a day and are authorized to handle any and all matters pertaining to or arising from the contract resulting from this proposal solicitation.
6. All proposals received after the time stated in the Notice to Proposers will not be considered and will be returned to the proposer. The proposer assumes the risk of any delay in the mail or in the handling of the mail by employees of the School District. Whether sent by mail or by means of personal delivery, the proposer assumes responsibility for having their proposal deposited on time at the place specified. **HOWEVER, THE BOARD OF EDUCATION RESERVES THE RIGHT TO WAIVE**

WHAT IT DEEMS TO BE INFORMALITIES RELATING TO A SPECIFIC PROPOSAL, TO REJECT ANY AND ALL PROPOSALS, TO RE-ADVERTISE AND INVITE NEW PROPOSALS, OR TO ACCEPT THE WHOLE OR A PART OF A PROPOSAL, OR TO ACCEPT PARTS OF PROPOSALS FROM MORE THAN ONE PROPOSAL PROPOSER AS IN THE BOARD'S JUDGMENT, IS IN THE BEST INTEREST OF THE SCHOOL DISTRICT.

7. It is mutually agreed that no contract becomes binding until the necessary funds have been approved for the school year(s) during which the contract is in effect and contract or contracts have been approved by the Board of Education.

8. The proposal specifications including the Notice to Proposers, Instructions to Proposers, Non-Collusive Certificate, General Conditions, Proposal Specifications, the successful proposer's proposal response and the Smithtown Central School District Purchase Order shall form the agreement between the successful proposer and the District. Accordingly, the documents specified above shall constitute a binding contract. This contract shall be non-exclusive. Upon award, the successful proposer shall execute a formal agreement with the School District as contained herein.

9. **LIQUIDATED DAMAGES:** In addition to the remedies set forth elsewhere in the contract documents:

- a. If the successful proposer fails to perform the services specified in this contract and/or fails to meet the criteria of the specifications, the successful proposer shall, in place of actual damages, pay to the District liquidated damages of \$125.00 per calendar day for each day that the services are not performed.
- b. If the District terminates this contract in whole or in part, for proposer's failure to deliver or perform as required by this contract, the successful proposer shall be liable for liquidated damages accruing until the District reasonably obtains performance of the services.
- c. The successful proposer will not be charged with liquidated damages when there is a delay in performance that is beyond the control and without the fault or negligence of the successful proposer. The District shall have the sole discretion to determine whether the delay in delivery or performance is excusable.

10. **TERMINATION:**

a. **For cause.**

- i. The District may, by written notice of default to the successful proposer, terminate this contract in whole or in part, effective **immediately**, if the successful proposer:

1. fails to perform the services specified in the contract and/or meet the criteria of the specifications;
 2. fails to perform any of the other provisions of this contract.
- ii. If the District terminates this contract in whole or in part, it may acquire, under the terms and in the manner the District considers appropriate, services similar to those terminated, and the successful proposer will be liable to the District for the costs of those services. However, the successful proposer shall continue the portion of work not terminated.
 - iii. The rights and remedies of the District in this clause are in addition to any other rights and remedies provided by law and/or equity and/or under this contract.
 1. Cancellation of a contract for any reason may result in removal of the successful proposer's name from mailing list for future proposals for an indeterminate period.
 2. It is mutually understood and agreed that the successful proposer shall not assign, transfer, convey, sublet or otherwise dispose of the contract or his right, title, or interest therein, or his power to execute such contract, to any other person, company, or corporation, without the previous written consent of the District.

b. **For convenience.**

- i. The School District may at any time, at will and without cause, terminate any part or all of the Contractor's services for any reason whatsoever by giving seven (7) days' written notice to Contractor, specifying the portion of the Contractor's work to be terminated and the effective date of termination.

11. **INDEMNIFICATION:** The successful proposer shall indemnify and save the District harmless from any and all claims, liabilities, losses and causes of action which may arise as a result of the successful proposer's performance or failure to perform its contractual obligations as outlined in these Proposal specifications. The successful proposer shall pay all claims and losses of any nature whatsoever in connection therewith, and shall defend all suits in the name of the District when applicable, and shall pay all costs and judgments, which may issue thereon. The successful proposer agrees to protect, defend, indemnify and hold harmless the District and its officers and employees from any and all claims and damages of every kind and nature made, or incurred by or on behalf of every person or corporation whatsoever, including the parties hereto and their employees that may arise, occur, or grow out of any acts, actions, omissions, work or other activity done by the successful proposer, its employees, subcontractors or any independent contractor working under the direction

of either the successful proposer or any approved subcontractor in the performance of this contract. The awarded proposer will be required to issue a certificate of insurance naming the Smithtown Central School District as additional insured with the appropriate coverage as specified herein.

12. **INSURANCE:** Insurance coverage as required by the District shall be provided by an insurance company licensed as an “admitted carrier” by the New York State Insurance Department. Thirty (30) days’ notice of cancellation, non-renewal or reduction of coverage is required. The insuring company shall not be released from liability or obligation for its failure to notify the Smithtown Central School District. The insurance coverage shall protect the successful proposer and the School District from claims for which the successful proposer may be liable. A copy of the successful proposer’s insurance certificate naming the District as an additional insured shall be furnished to the School District upon award of the contract. Please refer to the Insurance Requirements section of this document.

13. **REPRESENTATIONS:** The successful proposer warrants that it is duly licensed and authorized to provide and deliver armed security guard services as described herein. The successful proposer further warrants that it will provide the District with licensed and qualified individuals to perform the work contemplated by this agreement.

14. The successful proposer and all its employees shall possess and maintain in full force current licenses and permits as are required by law in connection with the services required herein. The successful proposer shall comply with all laws, rules, regulations and ordinances applicable to the services to be provided hereunder.

15. All work performed shall be performed in accordance with applicable law and best industry practice. The successful proposer shall furnish each individual providing services hereunder with a photo identification badge to be worn at all times when the individual is on-site providing services to the District. It is understood and agreed that while on the District’s property, the successful proposer, its employees and/or agents shall obey all of the District’s rules and regulations and must follow all reasonable directives of the District’s administrators and employees.

16. The successful proposer(s) shall be responsible for all personnel in its employ. At no time shall any employees create a nuisance, interfere with District students and/or employees or destroy school property. The successful proposer’s employees shall not enter unauthorized areas with the exception of life or death emergency. The District reserves the right to remove and/or request the removal of any employee of the Contractor with or without cause.

17. In compliance with the Board of Education’s approved Drug and Alcohol Free Workplace Policy, the successful proposer shall be aware that the possession, use, transmittal, manufacture, purchase or sale of illegal drugs, controlled substances, drug paraphernalia, designer drugs, alcoholic beverages or the use of tobacco products in any place or vehicle under school jurisdiction is strictly prohibited. All successful

Proposers shall ensure that its employees understand and comply with said policy and requirements.

18. The successful Proposer(s) shall repair or replace, to the satisfaction of the School District, any and all damage done to buildings, grounds and containers as a result of his negligence or as a result arising from an accident involving its employees and/or vehicles.

19. The successful proposer understands and agrees that it will comply with all applicable New York State Labor Laws including the payment of prevailing wage rates and the submission of certified payroll as provided for in the New York State Labor Law, section 220 et. seq. No payments will be made if certified payroll has not been submitted to the School District.

20. As per Article 8 and 9 of the New York State Labor Laws, wages paid for the performance of this contract shall not be less than those listed as minimum by the New York State Commissioner of Labor for the occupants listed. As per Article 8, Section 220, New York State Labor Law, every proposer and sub-proposer shall submit to the Department of Jurisdiction (Smithtown Central School District), within thirty (30) days after issuance of its first payroll, and every thirty (30) days thereafter, a transcript of the original payroll record, as provided by Article 8, subscribed and affirmed as true under penalties of perjury. The Smithtown Central School District shall be required to receive and maintain such payroll records.

21. The successful proposer will adhere to all applicable health and safety laws, rules and regulations including the Occupational Safety and Health Administration ("OSHA") Rules and Regulations. In the event that hazardous material or any hazardous condition is discovered, the successful proposer shall notify the District, and have the right to suspend all work until such hazards are removed or corrected. In the event that the hazardous material was introduced or the hazardous condition was caused by the successful proposer, its agents or employees, the successful proposer agrees to pay the cost of the removal, remediation, or correction.

22. The successful proposer shall comply with the "State Occupational Safety and Health Act" (SOSHA) and the "Toxic Substances Act" (Right to Know Act) with respect to all operations or activities on any of the properties owned or leased by the School District. Chapter 551 of the Laws of 1980 defined **TOXIC SUBSTANCE** as "any substance listed in the latest edition of the National Institute for Occupational and Health's REGISTRY OF TOXIC EFFECTS OF CHEMICAL SUBSTANCES, or has yielded positive evidence of acute or chronic health hazards in human, animal or other biological testing." Such information is required to be on file with each employer. Article 28, Section 875 subdivision 4, required that "any manufacturer, importer, procedure, or formulator of any toxic substance shipped, transported or sole for any use within the state must provide upon request certain information." In order for us to have this information on file, Proposers are required to submit one form OSHA-20, for each product included in the proposal to which this law will apply.

23. The successful proposer and all of its subcontractors shall comply with all pertinent provisions of Federal and State law against discrimination in employment practices.

24. The successful proposer shall comply with all laws, rules, regulations and ordinances of the State of New York, County of Suffolk, and all local laws, with special attention to New York Labor Laws, Environmental Conservation laws and all applicable town/village/city codes together with any rules and/or regulations promulgated thereunder.

25. If any person when called to testify before a Grand Jury, Head of a State Department, Temporary Commission or other State Agency, the Organized Crime Task Force in the Department of Law, Head of a Municipal Department, or other Municipal Agency which is empowered to compel attendance of witnesses and examine them under oath to testify in an investigation concerning any transaction or contract had with the State of New York, or any political subdivision thereof, a public authority, or with any public department, agency or office of the State or political subdivision thereof, refuses to answer any relevant question concerning such transaction or contract even though offered appropriate immunity, then any such person or firm, partnership or corporation of which they are a member, partner, director or officer shall be disqualified for a period of five (5) years after such refusal from submitting proposals to, receiving awards from, or entering into any contracts with the District or any department or agency or official thereof. Further, on the same grounds this agreement may be terminated by the District without the District incurring any penalty or damages by virtue of such cancellation or termination.

26. It is mutually understood and agreed that the successful proposer shall not assign, transfer, convey, sublet, or otherwise dispose of the Contract or its right, title, or interest herein, or its power to execute such Contract, or any part thereof to any person, company or corporation, without the previous written consent of the District.

INSURANCE CERTIFICATION
RFP #26/27-01
ARMED SECURITY GUARD SERVICES

Your insurance representative must complete the form below in order to be considered for the award of this RFP, and it is important that you complete the Proposer's Acknowledgement section of this form. Please note that the required certificates of insurance must accompany your bid submission if required in the RFP specifications for your bid to be considered.

INSURANCE REPRESENTATIVE'S ACKNOWLEDGEMENT:

We have reviewed the insurance requirements set forth in the RFP and are capable of providing such insurance to our insured in accordance with such requirements in the event the contract is awarded to our insured and provided our insured pays the appropriate premium.

Insurance Representative: _____

Address: _____

Are you an agent for the companies providing the coverage?

Yes _____ No _____

Date: _____
Insurance Representative

PROPOSER'S ACKNOWLEDGEMENT:

I acknowledge that I have received the insurance requirements of this RFP and have considered the costs, if any, for procuring the required insurance and will be able to supply the insurance required in accordance with the RFP, if it is awarded. I understand that the required certificates of insurance must be submitted upon pre-award, and if not, Smithtown Central School District may reject my RFP and award it to the next lowest proposer.

Firm Name: _____

Address: _____

Date: _____
Bidder's Signature

INSURANCE REQUIREMENTS

1. Notwithstanding any terms, conditions or provisions, in any other writing between the parties, the security firm hereby agrees to effectuate the naming of the District as an Additional Insured on the security firm's insurance policies, except for Workers' Compensation and N.Y. State Disability Insurance.
2. The policy naming the District as an Additional Insured shall:
 - a. Be an insurance policy from an A.M. Best A- rated or better insurer, licensed to conduct business in New York State. A New York licensed and admitted insurer is strongly preferred.
 - b. State that the organization's coverage shall be primary and non-contributory coverage for the District, its Board, employees and volunteers with a waiver of subrogation in favor of the District for all coverages including Workers' Compensation.
 - c. Additional insured status for General Liability coverage shall be provided by standard or other endorsements that extend coverage to the District (CG 20 26) or equivalent. The decision to accept an endorsement rests solely with the District. A completed copy of the endorsements must be attached to the Certificate of Insurance to include General Liability, Auto Liability (where applicable), Security Professional Liability (where applicable) and Umbrella/Excess coverages.
3.
 - a. The certificate of insurance must describe the services provided by the security firm that are covered by the liability policies.
 - b. At the District's request, the security firm shall provide a copy of the declaration page of the liability and umbrella/excess policies with a list of endorsements and forms. If requested, the security firm will provide a copy of the policy endorsements and forms.
4. The security firm agrees to indemnify the District for applicable deductibles and self-insured retentions.
5. Minimum Required Insurance:
 - a. **Commercial General Liability Insurance**
\$1,000,000 per Occurrence/ \$2,000,000 Aggregate
\$2,000,000 Products and Completed Operations
\$1,000,000 Personal and Advertising Injury
\$1,000,000 Sexual Misconduct and Assault
\$100,000 Fire Damage
\$10,000 Medical Expense

Coverage for sexual misconduct must be affirmed. Sub-limits below the policy limits for sexual misconduct coverage are acceptable solely at the discretion of the District.

The policy shall include coverage for assault and battery, including coverage for defamation, false arrest, detention and imprisonment. The policy shall include coverage for all security-related services rendered to the District by the contractor, including but not limited to armed security guards.

Security Professional Liability

If coverage for security guard services is not provided in the Commercial General Liability policy, it must be included in a separate Security Professional Liability policy. Limits for this coverage are: \$2,000,000 per occurrence/\$2,000,000 aggregate for the acts of the security officer performed under the contract for the District. If written on a "claims-made" basis, the effective date must pre-date the inception of the contract or agreement. Coverage shall remain in effect for three years following the completion of work.

- b. **Automobile Liability**
\$1,000,000 combined single limit for owned, hired, borrowed and non-owned motor vehicles.
 - c. **Workers' Compensation and NYS Disability Insurance**
Statutory Workers' Compensation (C-105.2 or U-26.3); and NYS Disability Insurance (DB-120.1) for all employees (NYS WC and Disability laws). Proof of coverage must be on the approved specific form, as required by the New York State Workers' Compensation Board. **ACORD certificates are not acceptable.** A person seeking an exemption must file a CE-200 Form with the state. The form can be completed and submitted directly to the WC Board online.
 - d. **Umbrella/Excess Insurance**
\$10,000,000 each Occurrence and Aggregate. Umbrella/Excess coverage shall be on a follow-form basis or provide broader coverage over the required Auto Liability (where applicable), General Liability and Security Professional Liability coverages.
6. The security firm acknowledges that failure to obtain such insurance on behalf of the District constitutes a material breach of contract and subjects it to liability for damages, indemnification and all legal remedies available to the District. The security firm is to provide the District with a certificate of insurance, evidencing the above requirements have been met, prior to the provision of services. The failure of the District to object to the contents of the certificate or the absence of same shall not be deemed a waiver of any rights held by the District.

TECHNICAL SPECIFICATIONS AND CONDITIONS

1. The School District is seeking sealed Proposals for the provision of labor, equipment and services necessary to deliver uniformed, armed security guard services at the following District locations as more fully described herein: Smithtown High School West, Smithtown High School East, Accomsett Middle School, Great Hollow Middle School, Nesaquake Middle School, Accomsett Elementary School, Dogwood Elementary School, Mills Pond Elementary School, Mt. Pleasant Elementary School, Smithtown Elementary School, Saint James Elementary School and Tackan Elementary School.
2. The successful Proposer shall provide armed guards to provide security services to the School District. The Contractor shall protect the buildings, grounds, and occupants from unlawful entry that could result in bodily harm.
3. The School District anticipates that guards assigned under this Agreement will primarily be stationed outside school buildings. However, the District reserves the right to relocate guards anywhere on School Grounds at its discretion, subject to prior written approval. Guards stationed outside must remain in vehicles provided by the Proposer or in their personal vehicles, provided the Proposer maintains appropriate automobile insurance. Since the intent is for guards to remain at a fixed building each day, there will be no reimbursement for fuel or personal mileage. Guards may also be required to perform foot patrols around the grounds as needed.
4. Such services shall be provided during the entire school year. Services shall be provided to the School District at each of its buildings during routine business hours of the School District, Monday through Friday during the term of the agreement and any renewal thereof. The hours set forth herein are subject to change as needed and approved by the District administration. Notwithstanding the foregoing, the School District anticipates that uniformed armed security guards will be on school grounds at least thirty (30) minutes prior to the arrival of students to the respective school building and unless otherwise required by the School District, remain at least thirty (30) minutes after the conclusion of the school day. ***These timeframes are subject to modification by the School District.*** The successful Proposer shall, to the extent possible, assign the same guards to each school building on a continuous basis so as to promote familiarity with the District and staff and continuity of service. Security guard coverage must be continuous and adequate during lunch breaks and other rest periods of assigned guards. The successful Proposer shall assign additional armed security guards to cover such breaks so as not to diminish the services provided to the School District.

For Proposers' reference, the school building hours are generally as follows:

Smithtown High School East:	7:00 AM – 2:30 PM
Smithtown High School West:	7:00 AM – 2:30 PM
Accompsett Middle School:	7:30 AM – 3:00 PM
Great Hollow Middle School:	7:30 AM – 3:00 PM
Nesaquake Middle School:	7:30 AM – 3:00 PM

Accompsett Elementary School:	9:00 AM – 4:00 PM
Dogwood Elementary School:	9:00 AM – 4:00 PM
Mills Pond Elementary School:	9:00 AM – 4:00 PM
Mt. Pleasant Elementary School:	9:00 AM – 4:00 PM
St. James Elementary School:	9:00 AM – 4:00 PM
Smithtown Elementary School:	9:00 AM – 4:00 PM
Tackan Elementary School:	9:00 AM – 4:00 PM

The hours provided above include the additional 30 minutes before and after the school day. The School District reserves the right to increase or decrease the approximate minute/hours.

5. The School District would also anticipate services at certain locations to be provided during the summer months on an hourly basis.

6. The School District anticipates that one (1) uniformed, armed security guard will be required at each designated location. Smithtown High School West and Smithtown High School East will have two (2) uniformed, armed security guards.

7. The Proposer's employees must wear District-approved uniforms while performing their duties. The Proposer must also be prepared to provide uniformed, armed security for any authorized District event, regardless of whether it falls outside standard school hours or the academic calendar.

8. The successful Proposer must have sufficient staff to cover the needs of the District. No travel time will be paid. Payments will be made only for services actually rendered to the School District.

9. Smoking will not be permitted anywhere on the School Grounds.

10. The Contractor's employees performing the services shall wear appropriate uniforms as selected by the Contractor and approved by the School District.

11. Armed security guards must carry Company issued cellular devices and a two-way radio or other means of mobile communication to establish and maintain communication with the successful Proposer's supervisory staff or management and the School District. The School District may, in its discretion, provide a two-way radio for use while performing services for the School District for such purposes.

12. The Contractor shall ensure that its employees do not fraternize with students, and warrants by entering into this Contract that its employees are to be expressly prohibited from such activity.

13. Unless directed in writing by the District to do otherwise, the Contractor shall ensure that any incident, such as fire or damage caused by weather or other circumstances, is immediately reported to the appropriate public authority, i.e., the police or fire department, for appropriate response. The Contractor shall also ensure

that every reasonable effort is made to sound any mechanical, electronic or other alarm in such a building, and that every effort is made to alert supervisory or other persons in such building to any dangerous condition. The Contractor shall also report to the appropriate public authority the acts of persons deemed by the Contractor to be dangerous, suspicious or a menace to residents, visitors, employees, or occupants of any of the buildings and its surroundings.

14. The Contractor shall immediately provide written reports of any such events to the District, through the Business Official and/or Supervisor of Safety and Security. The Contractor shall also be required to attend District meetings, as requested by the School District, concerning the security services provided hereunder or specific security related incidents.

15. Immediately upon reporting for duty, the Contractor's personnel performing the Work shall sign the Log Book, read all entries since such employee's previous shift, become acquainted with all problems and incidents that may have occurred in such time period, and confer with the supervisor to ascertain whether any special instructions apply to the upcoming shift.

16. In addition to the above, the Contractor shall provide to the District a verbal report of any incident that occurs on any shift by the close of that shift. Such report shall also be issued in writing on the Contractor's letterhead, and sent to the Business Official and/or Director of Security.

17. The Contractor shall make available, at any administrative, civil and/or criminal proceedings as may become necessary, as witnesses on behalf of the District, any employee participating in or observing an incident. In the event such services are required, the Contractor shall be entitled to a modification for the time such employee appears as a witness, at the hourly rate set forth in the Specifications for testimony.

18. The successful Proposer shall supervise and direct the delivery of services, using the successful Proposer's best skill and attention. The successful Proposer shall coordinate its security guard services with the District representatives and shall, at all times, adhere to the School District's overall security strategy for the coordination of its internal and external security measures to ensure the health and safety of the School District's students, staff and visitors.

19. The successful Proposer shall be responsible to the District for acts and omissions of the Contractor's employees, agents, and any entity or other persons performing portions of the services.

20. The Contractor shall not employ unfit persons, and shall, at its own expense, conduct pre-employment background checks of all personnel to be utilized during the term of this Contract including fingerprinting. Such background checks must include, but are not limited to, investigation of criminal records, previous employment, social security number verification, review of Department of Motor Vehicles records, and drug screening. The security service business and all security guards assigned to the

school, must be cleared by the New York Education Department pursuant to the SAVE legislation. No security guard will be assigned to the District without such clearance that must be provided to the District by the Contractor. The Proposer shall pay the cost of this clearance and all associated costs.

21. The successful Proposer shall conduct annual drug screenings for all armed security guards assigned to the School District at the Proposer's expense. Documentation of successful drug testing results must be included in the professional biographies of each individual assigned to the District.

22. The specific individual(s) assigned to the District must be identified each year and a copy of their professional biography, including all prior work experiences, must be submitted along with proof of satisfactory completion of all training requirements and proof of registration. Any additional documentation requested by the School District shall be provided by the successful Proposer. The Contractor shall, prior to using an employee for the first time to perform the Work, provide to the District a registration card and evidence that such employee has successfully completed the training requirements of Article 7A of the General Business Law of the State of New York. The School District reserves the right to verify licensing and registration information submitted in response to this proposal solicitation and during the term of the resultant contract.

23. Each individual to be assigned to the School District is subject to the approval by the Superintendent of Schools. The District shall have the right in its sole discretion to reject any of the Contractor's employees in the best interests of the District, and to bar such employee from any District facility. Any replacement employee to be used by the Contractor shall be subject to the District's prior approval. As the Contractor is obligated to provide all labor necessary to perform the Work, the District's rejection of any such employee shall not affect the Contractor's obligation or provide grounds for any Modification.

24. Upon request by the District, the Contractor shall supply for review, without charge, a file for each employee that will be performing any Work pursuant to this Contract. At a minimum, such file will include the application for employment, training records, eight (8) sixteen-hour New York State mandated training certificates, copy of the Security Guard Training Certificate. (Training shall meet the New York State Department of State Security Guard Act Requirements), copy of the guard's birth certificate or Employment Eligibility form I-9, or a valid New York State Department of Motor Vehicle Driver's license, a copy of the results of all pre-employment background checks, a copy of the employee's New York State Security Guard License, and evidence of registration with New York State. The District shall handle such information confidentially to the extent required by law.

25. The successful Proposer shall provide for all personnel administration of its employees assigned to the School District's location. The Contractor shall assign personnel to the School District's location in full compliance with applicable equal opportunity and civil rights law. Upon reasonable written notice, the School District

shall have the right to request that any of Contractor's employees whom it finds to be unacceptable be removed from its location. However, in no event will such a request by the School District be made for reasons that would violate applicable law.

26. The successful Proposer shall ensure that all of its employees are appropriately licensed. *The successful Proposer shall comply with the requirements set forth in the qualifications of Proposers.*

27. The successful Proposer shall furnish each individual providing services hereunder with a photo identification badge to be worn at all times while the individual is on-site providing services to the School District.

28. The successful Proposer will be required to meet the requirements of the Security Guard Act of 1992 (New York General Business Law Articles 7 and 7A).

29. All guards assigned to the School District to fulfill this contract shall be licensed by the State of New York to carry a firearm. Such license shall remain current and in effect at all times during the term of this Agreement. Proof of licensure shall be furnished to the School District as provided for herein and any subsequent renewal of the Agreement. The School District reserves the right to request proof of licensing at any time in its sole discretion. In the event that the armed security guard's license is revoked or canceled, written notice shall be immediately given to the School District. Cancellation or revocation of license, failure to maintain a valid license or registration or provide proof of a valid license or registration shall be grounds for immediate termination of this Agreement.

30. The armed guards shall complete the requisite firearms training necessary for safe maintenance, operation, and use of a firearm as required by applicable law including N.Y. Penal Law Article 35 and General Business Law and best practice. Such training shall be refreshed at least annually; and as often as required by law or best practice/highest industry standard, whichever is more frequent. Proof of training completion shall be furnished to the School District as required herein. Within five (5) days of completion of any additional training by any of the armed security guards, the successful Proposer shall provide certificates of completion of training. Failure to complete firearms training as required shall be grounds for immediate termination of this Agreement. The expectation is that the successful Proposer trains with the Suffolk County Policy Department or Town Safety.

31. The successful Proposer shall provide a minimum of one firearms training session per quarter for all employees assigned to the School District.

32. The successful Proposer must provide a minimum of bi-annual active shooter tactical training to its employees assigned to the School District.

33. All firearms shall be maintained in good working order at all times. A guard's individual firearm may be utilized as long as it is the weapon that the individual is

authorized to carry with their respective agency or documented on their license. The District reserves the right to determine the type of ammunition that will be utilized.

34. The successful Proposer shall at all times be responsible for the firearms, ammunition, licensing, training and maintenance costs and activities associated with the services to be provided hereunder.

35. Armed security guard personnel shall:

- a. Be at least 21 years of age
- b. Be a high school graduate or possess a general equivalency diploma, unless such requirement is waived by the District in writing
- c. Be able to speak, read and write the English language to communicate verbally and/or prepare reports
- d. Be in good physical condition to perform the essential duties of the position
- e. Possess current or prior military and/or law enforcement experience (e.g. special tactical units, military police, special forces, etc.)

36. The successful Proposer and personnel assigned to each location must be familiar with the building level safety plans and assist in the response to related emergencies coordinated with the School District Central Administration, respective school principal, other staff, medical and law enforcement personnel, the fire department and/or the Director of Facilities. The successful Proposer must provide experienced oversight and supervision. **All information shared regarding the building level safety plans and other emergency response protocols shall remain strictly confidential and shall not be disclosed to third parties.**

37. The successful Proposer must also be an equal opportunity employer with a security staff experienced in working with a diverse student population.

38. The Contractor is responsible for its compliance with all Federal, State and Local laws, edicts or ordinances including, but not limited to, New York General Business Law Articles 7 (Guard & Patrol Agencies) and 7A (Security Guard Act).

39. The Contractor shall comply with all Federal, State and Local laws, rules, regulations and ordinances prohibiting discrimination in employment. Failure to so comply will be grounds for cancellation and termination of the Contract by the District without penalty or damages because of said cancellation or termination. Only the actual cost of work performed prior to such cancellation or termination shall be paid to the Contractor.

40. The successful Proposer, its employees, and/or agents agree that all information obtained in connection with the services provided for in this Agreement is deemed confidential information. The successful Proposer, its employees, and/or agents shall not use, publish, discuss, disclose or communicate the contents of such information, directly or indirectly with third parties, except as otherwise provided herein. The successful Proposer further agrees that any information received by it, its employees, and/or agents during the course of the services provided which concerns the personal,

financial, or other affairs of the School District, its employees, agents, clients, and/or students will be treated by the Contractor, its employees, and/or agents in full confidence and will not be revealed to any other persons, firms, or organizations. The terms and conditions set forth herein shall survive the expiration and/or termination of this Agreement.

41. The successful Proposer shall be responsible to ensure that these conditions are adhered to at all times during the term of this Agreement. The successful Proposer shall complete the enclosed attestation each year of the contract and any renewal thereof.

42. The successful Proposer shall submit an invoice for services rendered on a monthly basis, and payment to the Contractor shall be made within thirty (30) days from receipt of invoice from Contractor. The invoice shall include time logs and attendance, types of services rendered and fees payable. Certified payroll shall be submitted together with such invoice.

43. The successful Proposer shall be responsible for all costs and expenses incurred by it that are incident to the performance of services for the School District, including, but not limited to, all vehicles, or other equipment necessary to perform the services to be provided by the Contractor, all fees, fines, licenses, bonds or taxes required of or imposed against Contractor and all other of Contractor's costs of doing business. The School District shall not be responsible for any expenses incurred by the Contractor in performing services for the School District.

QUALIFICATIONS OF PROPOSERS

Experience and Qualifications of the Proposer: Each proposer is required to submit the following documentation to demonstrate its experience and qualifications for the work of the Project for which a proposal is submitted:

1. A description of its experience with work of comparative scope, size and cost, together with documentary evidence showing that said work was completed to the satisfaction of the entity for which such work was performed.
2. Documentation demonstrating that the proposer has been in the business of providing uniformed armed guard service for a minimum of five (5) years.
3. Proposers must be able to demonstrate that it will provide the School District security personnel who have at least five (5) years of current or prior military and/or law enforcement experience (e.g. special tactical units, military police, special forces, etc.)

Prior experience as a security guard or comparable private sector service **does not satisfy the requirement of this section and will not be considered** as a substitute for the required background and experience of the staff to be supplied by the successful proposer to the School District.

4. Documentation evidencing that the proposer is a New York State Licensed and Bonded Security Guard Service authorized to provide private security services in this State.

Provide proof of licensure to do business in the State of New York as a private security guard firm/service. The District shall handle such information confidentially to the extent permitted by law.

5. Documentation that all proposer's employees have satisfied and remain in compliance with all firearms training courses and possess current and valid registration documents from the State of New York. For any individual to be assigned to the School District, provide New York State mandated training certificates, copies of the Security Guard Training Certificate (training shall meet the New York State Department of State Security Guard Act Requirements), copy of pre-employment background checks, criminal background checks and New York State Security Guard License and evidence of registration.
6. Documentation evidencing proposer's employee training programs including pre-assignment training, on-the-job training and annual continuing training.
7. Documentation from each of the proposals the proposer has been awarded in the last five (5) years concerning the proposer's:
 - (i) evidence that the work was performed to the customer's satisfaction;

- (ii) whether litigation and/or arbitration was commenced by either the customer or the proposer as a result of the work performed by the proposer;
 - (iii) whether the proposer was defaulted by the owner.
8. Documentation showing that the proposer is capable of providing service on any day or time on an as needed basis.
 9. Documentation evidencing the proposer's financial responsibility, including a certified financial statement prepared by a certified public accountant.
 10. Documentation evidencing the proposer's existence under the same name for the last five (5) years.

In addition to the foregoing, provide a Vendor profile, which includes, but is not limited to, the following:

- Provide a brief description and history of your company.
- Indicate the number of years the company has been in business.
- Indicate the size of your company and number of service contracts.
- Discuss the ownership and organizational structure of your company and its support staff with an organizational chart for the team that would be assigned to the account along with key qualifications.
- Provide information to demonstrate that your firm has the ability to provide the uniformed armed security guard services required by the District.
- Discuss your firm's experience and qualifications on similar engagements.
- Provide a minimum of five (5) major account references from present customers, including company name, contact name, position or title, telephone number, fax number and/or email address. Emphasize accounts comparable in size and scope to the District.

Proposers must provide evidence of compliance with all requirements at the time of submission. The District reserves the right to conduct any investigation it deems necessary to determine a proposer's responsibility and ability to perform the work. This includes a review of the Proposer Qualifications Statement and any additional data requested. Proposers must furnish all requested information within the timeframe and in the format specified by the District.

Upon the School District's request, the Proposer shall furnish four (4) written copies of the following information within three (3) working days of the proposal opening:

1. Updated evidence of financial responsibility, including a certified financial statement prepared by a certified public accountant; and
2. All insurance certificates as required by the Proposal documents

To the fullest extent permitted by law, the School District reserves the right to reject any proposal if the evidence required and/or requested by the School District is not

submitted or fails to satisfy the School District that the proposer is responsible, able and qualified to carry out the obligations of the Contract or to complete the Work as contemplated.

Evaluation Procedures

Review of Proposals:

The School District will review qualifications of the proposals. The School District reserves the right to retain all proposals submitted and use any idea in a proposal regardless of whether that proposal is selected.

Interview:

The Board of Education reserves the right to request an interview with the proposer to discuss its plan for providing the services.

Evaluation Criteria:

	Evaluation Criteria	Points
	Completeness of Response: Responses to this RFP must be complete. Responses that do not include the proposal content requirements identified within this RFP and subsequent Addenda and do not address each of the items listed below will be considered incomplete, be rated a Fail in the Evaluation Criteria and will receive no further consideration.	Pass/Fail
	Debarment and Suspension: Bidders, its principal and named subcontractors are not identified on the list of Federally debarred, suspended or other excluded parties located at www.sam.gov .	Pass/Fail
A.	Cost: The points for Cost will be computed by dividing the hourly rate of the lowest responsive bid received by each proposer's hourly rate and multiplying by maximum points available. While not reflected in the Cost evaluation points, an evaluation may also be made of: 1. Reasonableness (i.e., does the proposed pricing accurately reflect the bidder's effort to meet requirements and objectives?); 2. Realism (i.e., is the proposed cost appropriate to the nature of the products and services to be provided?); and 3. Affordability (i.e., the ability of the District to finance services).	20 Points

B.	Implementation Plan and Schedule: An evaluation will be made of the likelihood that the proposer's implementation plan will meet the District's needs and the questions below: 1. Has the proposer demonstrated that it understands the District's time schedule and can meet it? 2. Has the proposer clearly outlined its staffing plan and training plan to ensure no lapse in post coverage?	20 Points
C.	Relevant Experience: Proposals will be evaluated against the RFP specifications and the questions below: 1. How many years has the proposer been continuously engaged in providing armed security guard services? 2. How many years has the proposer been continuously engaged in providing security guard services in New York State Public School Districts?	30 Points
D.	Understanding of the Project: Proposals will be evaluated against the RFP specifications and the questions below: 1. Has proposer demonstrated a thorough understanding of the purpose and scope of the project? 2. Has the proposer demonstrated that it understands the deliverables the District expects it to provide? 3. Has the bidder demonstrated its experience with mitigating security issues?	20 Points
E.	References	10 Points

Final Selection

The Board of Education will select the individual or firm based upon the proposals and the recommendations of the School District's administration. It is anticipated that the individual or firm will be selected by **June 1, 2026**. Following notification of the individual or firm selected, it is expected that a contract will be executed between both parties by **June 16, 2026**. The proposer will understand that the award date may be modified unilaterally by the School District if necessary. The selected firm must be prepared to begin work no later than **July 1, 2026**.

Rejection of Proposals. The District reserves the right to reject any proposal if the evidence submitted in the qualification statement or as determined by investigation of the proposer indicates, in the judgment of the District, that the proposer is not qualified to carry out the obligations of the contract and/or to perform the work described therein.

STATEMENT OF PROPOSER'S QUALIFICATIONS

1. Name of Proposer

2. Type of Business Entity

3. If the proposer is a corporation, state the date and place of incorporation of the corporation.

4. For how many years has the proposer done business under its present name?

5. List the persons who are directors, officers, owners, managerial employees or partners in the proposer's business.

6a. Have any of the persons listed in Number 5 owned/operated/been shareholders in any other companies? If so, please state name of owned/operated/been shareholders and names of other companies:

6b. If the answer to number 6a is in the affirmative, list said persons and the names of their previous affiliations.

7. Has any director, officer, owner or managerial employee had any license or registration suspended or revoked? If the answer to this question is yes, list the name of the individual, the license or registration he/she formerly held, whether said license or registration was revoked or suspended and the date of the revocation or suspension.

8. During the three year period preceding the submission of this proposal, has the proposer been found guilty of any OSHA Violations? If the answer to this question is yes, describe the nature of the OSHA violation, an explanation of remediation or other steps taken regarding such violation(s).

9. During the five year period preceding the submission of this proposal, has the proposer been charged with any claims pertaining to unlawful intimidation or discrimination against any employee by reason of race, creed, color, disability, sex or natural origin and/or violations of an employee's civil rights or equal employment opportunities? If the answer to this question is yes, list the persons making such claim against the proposer, a description of the claim, the status of the claim, and what disposition (if any) has been made regarding such claim.

10. During the five year period preceding the submissions of this proposal, has the proposer been named as a party in any lawsuit in an action involving a claim for personal injury or wrongful death arising from performance of work related to any contract or assignment in which it has been engaged? If the answer to this question is yes, list all such lawsuits, the index number associated with said suit and the status of the lawsuit at the time of the submission of this proposal.

11. During the five year period preceding the submission of this proposal, has the proposer been the subject of an investigation and/or proceedings before the Department of Labor for alleged violations of the Labor Law as it relates to the payment of prevailing wages and/or supplemental payment requirements? If the answer to this question is yes, please list each such instance of the commencement of a Department of Labor proceeding, for which contract such proceeding was commenced, and the status of the proceeding at the time of the submission of this proposal.

12. During the five year period preceding the submission of this proposal, has the proposer been the subject of an investigation and/or proceeding before any law enforcement agency, including, but not limited to any District Attorney's Office? If the answer to this question is yes, please list each such instance, the law enforcement agency, the nature of the proceeding, the contract for which such proceeding was commenced, if applicable to a project, and the status of the proceeding at the time of the submission of this proposal.

13. During the five year period preceding the proposer's submission of this proposal, has the proposer been the subject of proceedings involving allegations that it violated the Workers' Compensation Law including but not limited to the failure to provide proof of worker's compensation or disability coverage and/or any lapses thereof. If the answer to this question is yes, list each such instance of violation and the status of the claimed violation at the time of the submissions of this proposal.

14. Has the proposer, its officers, directors, owner and/or managerial employees been convicted of a crime or been the subject of a criminal indictment during the five years preceding the submission of this proposal? If the answer to this question is yes, list the name of the individual convicted or indicted, the charge against the individual and the date of disposition of the charge.

15. During the five year period preceding the proposer's submission of this proposal, has the proposer been charged with and/or found guilty of any violations of federal, state, or municipal environmental and/or health laws, codes, rules and/or regulations? If the answer to this question is yes, list the nature of the charge against the proposer, the date of the charge, and the status of the charge at the time of the submission of this proposal.

16. Has the proposer made a proposal on any contracts for the period September 1, 2015 to present? If the answer to this question is yes, list the contracts in which the proposer submitted a proposal on, whether said proposal was awarded to the proposer and the expected date of commencement of the work for said contract. For those contracts listed, if the proposer was not awarded the contract, state whether the proposer was the lowest monetary proposer.

17. Does the proposer have any ongoing contracts at the time of the submission of this proposal? If the answer to this question is yes, list the contracts for which the proposer is currently working and the duration of said contract.

18. Has the proposer's contract ever been terminated by the Customer/Client? If the answer to this question is yes, list the contract on which the proposer was terminated, the nature of the termination (convenience, suspension, for cause), and the date of said termination.

Dated:

By: _____
(Signature)

(Print Name and Title)

Sworn to before me this
_____ day of _____, 20__.

Notary Public

INFORMATION SHEET

NAME OF COMPANY:

ADDRESS:

PHONE NUMBER:

DATE:

FAX NUMBER:

NAME OF PROPOSER:

TITLE:

REFERENCES

Please list five (5) references from accounts similar in size and scope to the District.

1. Firm Name: _____
Contact Name/Title: _____
Address: _____
Telephone: _____
Date(s) of Service: _____

2. Firm Name: _____
Contact Name/Title: _____
Address: _____
Telephone: _____
Date(s) of Service: _____

3. Firm Name: _____
Contact Name/Title: _____
Address: _____
Telephone: _____
Date(s) of Service: _____

4. Firm Name: _____
Contact Name/Title: _____
Address: _____
Telephone: _____
Date(s) of Service: _____

5. Firm Name: _____

Contact Name/Title: _____

Address: _____

Telephone: _____

Date(s) of Service: _____

**CONFLICT OF INTEREST
AND
NON-COLLUSIVE CERTIFICATE**

CONFLICT OF INTEREST CERTIFICATION

That the said proposer is of lawful age and the only one interested in this Proposal, and that no one other than said proposer has any interest herein.

That this Proposal is made without any previous understanding, agreement or connection with any other person, firm or corporation making a proposal for the same purpose, and is in all respects fair and without collusion or fraud.

That no member of the Board of Education of the Smithtown Central School District or any officer or employee or person whose salary is payable as a whole or in part from the treasury of said Board of Education is directly or indirectly interested in this Proposal or in the supplies, materials, equipment, work or services to which it relates, or in any portion of the profits thereof.

That said proposer has carefully examined the instruction to Proposers, term, conditions, and specifications prepared under the direction of the Board of Education, and will, if successful in this proposal, furnish and deliver at the prices proposal in its Proposal and within the time stated, all materials, supplies, apparatus, goods, wares, merchandise, services or labor for which this Proposal is made.

That the prices quoted are net and exclusive of all federal, state, and municipal sales and excise taxes.

Person, Firm or Corporation: _____

Authorized Signature: _____

Sworn to before me this _____ day of _____, 2026.

(NOTARY PUBLIC)

NON-COLLUSIVE CERTIFICATION

Firm Name:

Business Address:

Telephone Number:

I. General Proposal/Proposal Certification

The Proposer certifies that he/she will furnish, at the prices herein quoted, the materials, equipment and/or services proposed on this proposal/proposal.

II. Non-Collusive Certification

By submission of this proposal the proposer certifies that he/she is complying with Section 103-d of the General Municipal Law as follows:

- 1) Statement of non-collusion in proposals and proposals to political subdivision of the State. Every proposal or proposal hereafter made to a political subdivision of the State or any public department, agency or official thereof where competitive submitting a proposal is required by statute, rule, regulation, or local law, for work or services performed or to be performed or goods sold or to be sold, shall contain the following statement subscribed by the proposer and affirmed by such proposer as true under the penalties of perjury.
- A. By submission of this proposal, each proposer and each person signing on behalf of the proposer certifies, and in the case of a joint proposal, each party thereto certifies as to its own organization, under penalty of perjury, that to the best of the proposer's knowledge and belief:
 1. The prices in this proposal have been arrived at independently without collusion, consultation, communication, or agreement for the purpose of restricting competition as to any matter relating to such prices with any other proposer or with any competitor.
 2. Unless otherwise required by law, the prices which have been quoted in this proposal have not been knowingly disclosed by the proposer and will not knowingly be disclosed by the proposer prior to opening, directly or indirectly, to any other proposer or to any competitor; and
 3. No attempt has been made or will be made by the proposer to induce any other person partnership or corporation to submit a proposal for the

purpose of restricting competition.

- B. A proposal shall not be considered for award nor shall any award be made where (A)(1), (2), and (3) above have not been complied with; provided, however, that if in any case the proposer cannot make the foregoing certification, the proposer shall so state and shall furnish with the proposal a signed statement which sets forth in detail the reasons therefore. Where (A)(1), (2), and (3) above have not been complied with, the proposal shall not be considered for award nor shall any award be made unless the head of purchasing unit of the political subdivision, public department, agency, or official thereof to which the proposal is made, or his designee, determines that such disclosure was not made for the purpose of restricting competition.

The fact that the a proposer (a) has published price lists, rates, or tariffs covering items being procured, (b) has informed prospective customers of proposed or pending publication of new or revised price lists for such items, or (c) has sold the same items to other customers at the same prices being proposed does not constitute, without more, a disclosure within the meaning of paragraph A above.

- C. Any proposal hereafter made to any political sub-division of the State or any public department, agency or official thereof by a corporate proper for work or services performed or to be performed or goods sold or to be sold, where competitive submitting a proposal is required by statute, rule, regulation, or local law, and where such proposal contains the certification referred to in subdivision one of the section, shall be deemed to have been authorized by the board of directors of the proposer and such authorization shall be deemed to include the signing and submission of the proposal and the inclusion therein of the certificate as to non-collusion as the act and deed of the corporation.

(SEAL OF CORPORATION)
Corporate or Company Name

By: _____
Signature

Subscribed and sworn to before me
this _____ day of _____, 2026

Notary Public

IRAN DIVESTMENT ACT
CERTIFICATION OF COMPLIANCE WITH THE IRAN DIVESTMENT ACT

As a result of the Iran Divestment Act of 2012 (the "Act"), Chapter 1 of the 2012 Laws of New York, a new provision has been added to State Finance Law (SFL) § 165-a and New York General Municipal Law § 103-g, both effective April 12, 2012. Under the Act, the Commissioner of the Office of General Services (OGS) will be developing a list of "persons" who are engaged in "investment activities in Iran" (both are defined terms in the law) (the "Prohibited Entities List"). Pursuant to SFL § 165-a(3)(b), the initial list is expected to be issued no later than 120 days after the Act's effective date at which time it will be posted on the OGS website.

By submitting a proposal in response to this solicitation or by assuming the responsibility of a Contract awarded hereunder, each Proposer/Contractor, any person signing on behalf of any Proposer/Contractor and any assignee or subcontractor and, in the case of a joint proposal, each party thereto, certifies, under penalty of perjury, that once the Prohibited Entities List is posted on the OGS website, that to the best of its knowledge and belief, that each Proposer/Contractor and any subcontractor or assignee is not identified on the Prohibited Entities List created pursuant to SFL § 165-a(3)(b).

Additionally, Proposer/Contractor is advised that once the Prohibited Entities List is posted on the OGS Website, any Proposer/Contractor seeking to renew or extend a Contract or assume the responsibility of a Contract awarded in response to this solicitation must certify at the time the Contract is renewed, extended or assigned that it is not included on the Prohibited Entities List.

During the term of the Contract, should the School District receive information that a Proposer/Contractor is in violation of the above-referenced certification, the School District will offer the person or entity an opportunity to respond. If the person or entity fails to demonstrate that he/she/it has ceased engagement in the investment which is in violation of the Act within 90 days after the determination of such violation, then the School District shall take such action as may be appropriate including, but not limited to, imposing sanctions, seeking compliance, recovering damages or declaring the Proposer/Contractor in default. The School District reserves the right to reject any proposal or request for assignment for a Proposer/Contractor that appears on the Prohibited Entities List prior to the award of a contract and to pursue a responsibility review with respect to any Proposer/Contractor that is awarded a contract and subsequently appears on the Prohibited Entities List.

I, _____, being duly sworn, deposes and says that he/she is the _____ of the _____ Corporation and that neither the Proposer/ Contractor nor any proposed subcontractor is identified on the Prohibited Entities List.

SWORN to before me this _____ day of _____, 2026

Notary Public

**DECLARATION OF PROPOSER'S INABILITY TO PROVIDE CERTIFICATION OF COMPLIANCE
WITH THE IRAN DIVESTMENT ACT**

Proposers shall complete this form if they cannot certify that the proposer /contractor or any proposed subcontractor is not identified on the Prohibited Entities List. The District reserves the right to undertake any investigation into the information provided herein or to request additional information from the proposer.

Name of the Proposer: _____

Address of Proposer: _____

Has proposer been involved in investment activities in Iran? _____

Describe the type of activities including but not limited to the amounts and the nature of the investments (e.g. banking, energy, real estate) _____

If so, when did the first investment activity occur? _____

Have the investment activities ended? _____

If so, what was the date of the last investment activity? _____

If not, have the investment activities increased or expanded since April 12, 2012? _____

Has the proposer adopted, publicized, or implemented a formal plan to cease the investment activities in Iran and to refrain from engaging in any new investments in Iran? _____

If so, provide the date of the adoption of the plan by the proposer and proof of the adopted resolution, if any and a copy of the formal plan. _____

In detail, state the reasons why the proposer cannot provide the Certification of Compliance with the Iran Divestment Act below (additional pages may be attached):

I, _____ being duly sworn, deposes and says that he/she is the _____ of the _____ Corporation and the foregoing is true and accurate.

SIGNED

SWORN to before me this

_____ day of _____, 2026

Notary Public: _____

HOLD HARMLESS AGREEMENT
THIS FORM MUST BE SIGNED AND NOTARIZED AND SUBMITTED WITH PROPOSAL

IT IS HEREBY AGREED AND UNDERSTOOD THAT THE PROPOSER AGREES TO HOLD HARMLESS AND INDEMNIFY THE SMITHTOWN CENTRAL SCHOOL DISTRICT, ITS BOARD OF EDUCATION, ANY OFFICER, AGENT, SERVANT, OR EMPLOYEE OF THE SCHOOL DISTRICT FROM ANY LAWSUIT, ACTION, PROCEEDING, LIABILITY, JUDGMENT, CLAIM, OR DEMAND WHICH MAY ARISE OUT OF:

ANY INJURY TO PERSON OR PROPERTY SUSTAINED BY THE PROPOSER, ITS AGENTS, SERVANTS, OR EMPLOYEES, OR ANY PERSON, FIRM, OR CORPORATION EMPLOYED DIRECTLY OR INDIRECTLY BY THEM UPON OR IN CONNECTION WITH THEIR PERFORMANCE UNDER THE CONTRACT. HOWEVER CAUSED, ANY INJURY TO PERSON OR PROPERTY SUSTAINED BY ANY PERSON, FIRM, OR CORPORATION, CAUSED BY ANY ACT, DEFAULT, ERROR, OR OMISSION OF THE CONTRACTOR, ITS AGENTS, OR EMPLOYEES OR ANY PERSON, FIRM, OR CORPORATION, DIRECTLY OR INDIRECTLY EMPLOYED BY THEM UPON OR IN CONNECTION WITH PERFORMANCE UNDER THE CONTRACT.

THE ASSUMPTION OR INDEMNITY, LIABILITY, AND LOSS HEREUNDER SHALL SURVIVE CONTRACTOR'S COMPLETION OF SERVICE OR OTHER PERFORMANCE HEREUNDER AND ANY TERMINATION OF THIS CONTRACT. THE CONTRACTOR AT ITS OWN EXPENSE AND RISK SHALL DEFEND ANY SUCH LEGAL PROCEEDINGS THAT MAY BE BROUGHT AGAINST THE SCHOOL DISTRICT, THE BOARD OF EDUCATION, OR ANY OFFICER, AGENT, SERVANT, OR EMPLOYEE OF THE SCHOOL DISTRICT ON ANY CLAIM OR DEMAND HEREUNDER, AND SHALL SATISFY ANY JUDGMENT THAT MAY BE RENDERED AGAINST THE SCHOOL DISTRICT, THE BOARD OF EDUCATION, OR ANY OFFICER, AGENT, SERVANT, OR EMPLOYEE OF THE SCHOOL DISTRICT.

THIS INDEMNIFICATION, DEFENSE, AND HOLD HARMLESS AGREEMENT SHALL APPLY TO ANY LAWSUIT, ACTION, PROCEEDING, LIABILITY, JUDGMENT, CLAIM, OR DEMAND, OR WHATEVER NAME OR NATURE ARISING OUT OF OR FROM THIS AGREEMENT, NOTWITHSTANDING THAT CONTRACTOR MAY DEEM THE SAME TO BE FRIVOLOUS OR WITHOUT MERIT. IT IS INTENDED THAT THIS AGREEMENT BE INTERPRETED IN THE BROADEST MANNER POSSIBLE SO AS TO INSULATE ALL OF THE ENTITIES, PARTIES, AND INDIVIDUALS NAMED ABOVE FROM ANY LIABILITY, COST, OR JUDGMENT, MONETARY OR OTHERWISE, AS THE SAME MAY RELATE TO THE PERSONNEL AND SERVICES PROVIDED BY THE CONTRACTOR.

Person, Firm or Corporation: _____

Authorized Signature: _____

Sworn to before me this

_____ day of _____, 2026

(NOTARY PUBLIC)

Sexual Harassment Prevention Certification Form

By submission of this Proposal, the person signing on behalf of the proposer certifies, under penalty of perjury, that: the proposer has and has implemented a written policy addressing sexual harassment prevention in the workplace; the proposer provides annual sexual harassment prevention training to all of its employees; and that the principal(s) and all employees of the proposer have completed the sexual harassment prevention training in the last twelve (12) months. Such policy shall, at a minimum, meet the requirements of Section 201-g of the Labor Law.

Proposer Name:

Proposer Address:

Print Name and Title:

Signature: _____

Date: _____

Sworn to before me this _____

day of _____, 20____

Notary Public

SMITHTOWN CENTRAL SCHOOL DISTRICT
RFP #26/27-01
ARMED SECURITY GUARD SERVICES
FORM OF PROPOSAL

BOARD OF EDUCATION
SMITHTOWN CENTRAL SCHOOL DISTRICT

Name of Proposer:

Business Address:

Telephone Number:

Date of Proposal:

The Proposer mentioned above hereby declares and certifies:

That said Proposer has carefully examined the written specifications for furnishing the transportation services for the SMITHTOWN CENTRAL SCHOOL DISTRICT Smithtown, New York, and that said Proposer has examined and fully comprehends all of the General Conditions, Specifications, Appendices and any and all documents incorporated or otherwise referenced therein for the transportation service for the amounts stated below pursuant to the terms and conditions described in the proposal documents:

First: That said proposer is of lawful age and the only one interested in this proposal and that no one other than said proposer has any interest herein.

Second: That this proposal is made without any previous understanding, agreement or connection with any other person, firm, or corporation making a proposal for the same purpose, and is in all respects fair and without collusion or fraud.

Third: That no member of the Board of Education of the SMITHTOWN CENTRAL SCHOOL DISTRICT, nor any officer or employee or person whose salary is payable as a whole or in part from the treasury of said Board of Education is directly or indirectly interested in this proposal or in the supplies, materials, equipment, work or services to which it relates, or in any portion of the profits thereof.

Fourth: That said proposer has carefully examined all parts of the specifications, and all documents referenced therein, prepared under the direction of the Board of Education, and will, if successful in this proposal, furnish and deliver at the prices proposed and within the time stated, all materials, supplies, apparatus, goods, wares, services, or labor for which this proposal is made.

Fifth: That the prices quoted are exclusive of all federal, state, and municipal sales and excise taxes, unless otherwise required by law.

Sixth: The undersigned further declares that he/she has received and examined the following addenda:

FOR THE PROPOSAL TO BE VALID, ALL PAGES OF THE PROPOSAL FORM MUST BE DULY EXECUTED.

Seventh: The Proposer shall check here _____ if the proposal has been based upon equivalents in lieu of any kind, type, brand, or manufacturer of material other than those named in the specifications. If checked, the Proposer shall submit a list of said equivalents with a detailed description of same. This item in no way prohibits the Proposer from submitting equivalents after the award of the contract.

Eighth: The undersigned further understands and agrees that they are to furnish all labor, services, materials, and equipment, supplies, and other facilities and things necessary for the execution of the Agreement.

Where indicated below, proposer shall provide pricing for each service item in figures and in words.

****For calculation purposes only, the proposer shall use 180 days as the estimated number of days that services will be provided for the 2026-2027 school year.***

“Regular school day” shall mean Monday through Friday, excluding school holidays as noted on the School District calendar. “Weekend day” shall mean Saturday and/or Sunday during the contract term. In the event that the Board of Education renews the

Agreement, the District Calendar shall be utilized to calculate the number and type of days as defined above of days services will be required.

I. Cost of the hourly rate for an armed security guard for the 2026-2027 School Year:

\$_____ (in figures)
_____ dollars (in words)

II. Cost of Nighttime Differential for Armed Security Guard (if applicable)

\$_____ (in figures)
_____ dollars (in words)

III. Hourly rate for Overtime for an armed security guard

\$_____ (in figures)
_____ dollars (in words)

IV. Holiday Rate for armed security guard (Federal Holidays)

\$_____ (in figures)
_____ dollars (in words)

It is expressly understood and agreed to by Contractor that the District requires fourteen (14) armed security guards on each and every school day unless otherwise noted. There will be two armed security guards positioned at both Smithtown High School East and Smithtown High School West. There will be one armed security guard positioned at each of the following schools: Accomsett Middle School, Great Hollow Middle School, Nesaquake Middle School, Accomsett Elementary School, Dogwood Elementary School, Mills Pond Elementary School, Mt. Pleasant Elementary School, St. James Elementary School, Smithtown Elementary School and Tackan Elementary School.

It is expressly understood and agreed to by Contractor that it is within the District's sole discretion to order additional services and/or deduct services, and that Contractor has no expectation that such services will be ordered at all or in any particular amount.

All additional services shall be performed in strict accordance with the provisions of the Contract.

The proposer certifies that he has familiarized himself with the specifications, has carefully read them, understands their contents and agrees to furnish the services as requested at the prices quoted herein.

Signature of Proposer: _____

Print Name: _____

Title: _____

Date: _____

Subscribed and sworn to before me this

____ day of _____, 20____

Notary Public

Smithtown Central School District

School Locations

Elementary Schools:

Accompsett Elementary
1 Lincoln Street
Smithtown NY 11787
631-382-4155

Mills Pond Elementary
246 Moriches Road
St. James, NY 11780
631-382-4155

St. James Elementary
580 Lake Avenue
St. James, NY 11780
631-382-4455

Mt. Pleasant Elementary
33 Plaisted Avenue
Smithtown, NY 11787
631-382-4355

Smithtown Elementary
51 Lawrence Avenue
Smithtown, NY 11787
631-382-4505

Dogwood Elementary
50 Dogwood Road
Smithtown, NY 11787
631-382-4255

Tackan Elementary
99 Midwood Avenue
Nesconset, NY 11767
631-382-4155

Secondary Schools:

Accompsett Middle School
660 Meadow Road
Smithtown, NY 11787
631-382-2300

Great Hollow Middle School
150 Southern Boulevard
Nesconset, NY 11767
631-382-2805

Nesaquake Middle School
479 Edgewood Avenue
St. James, NY 11780
631-382-5105

Smithtown High School West
100 Central Road
Smithtown, NY 11787
631-382-2905

Smithtown High School East
10 School Street
St. James, NY 11780
631-382-2705



Prevailing Wage

[Home](#) > Prevailing Wage

· [Wage Schedule](#) · [Submit Notice Of Award](#) · [Submit Notice Of Project Completion](#)

PRC#: 2026900471
Type of Contracting Agency: Local School District

Acceptance Status: Accepted Article 9

Contracting Agency

Smithtown CSD
Gina Klug
Purchasing Agent
26 New York Avenue
Smithtown NY 11787

(631) 382-2150
(631) 382- 2155 Fax
gklug@smithtown.k12.ny.us

Send Reply To

Patricia Harmon
Other
26 New York Avenue
Smithtown NY 11787

(631) 382 -2150
(631) 382-2155 Fax
pharmon02@smithtown.k12.ny.us

Project Information

Project Title Armed Security Guards
Description of Work Armed Security Guards - to Enhance Security Measures for Exterior Perimeter of District.
Contract Id No. 26/27-01
Project Location(s) District Wide
Route No / Street Address
Village / City
Town
State / Zip NY
Nature of Project Building Service Contract (Article 9 Only)
Approximate Bid Date/Service Date 07/01/2026
Checked Occupation(s) Guards, Security

Applicable Counties

Suffolk

Department of Labor

[Accessibility](#)

[Contact](#)

[Language Access](#)

[Privacy Policy](#)





Kathy Hochul, Governor

Roberta Reardon, Commissioner

Smithtown CSD
Patricia Harmon
26 New York Avenue
Smithtown NY 11787

Schedule Year 2025 through 2026
Date Requested 03/18/2026
PRC# 2026900471

Location District Wide
Project ID# 26/27-01
Occupation Type(s) Guards, Security

PREVAILING WAGE SCHEDULE FOR ARTICLE 9 PUBLIC WORK PROJECT

Attached is the current schedule(s) of the prevailing wage rates and prevailing hourly supplements for the project referenced above. A unique Prevailing Wage Case Number (PRC#) has been assigned to the schedule(s) for your project.

The Schedule is effective from July 2025 through June 2026. All updates or corrections, are posted on the 1st business day of each month. Updated PDF copies of your schedule can be accessed by entering your assigned PRC# at the proper location on the website, www.labor.ny.gov. Future copies of the annual determination are also available on the Department's website.

It is the responsibility of the contracting agency or its agent to annex and make part, the attached schedule, to the specifications for this project, when it is advertised for bids and /or to forward said schedules to the successful bidder(s), immediately upon receipt, in order to insure the proper payment of wages.

Please refer to the "General Provisions of Laws Covering Workers on Article 9 Public Work Building Service Contracts" provided with this schedule, for the specific details relating to other responsibilities of the Department of Jurisdiction.

Upon completion or cancellation of this project, enter the required information and mail **OR** fax this form to the office shown at the bottom of this notice, **OR** fill out the electronic version via the NYSDOL website.

NOTICE OF COMPLETION / CANCELLATION OF PROJECT

Date Completed: _____ Date Cancelled: _____

Name & Title of Representative: _____

Phone: (518) 457-5589 Fax: (518) 485-1870
W. Averell Harriman State Office Campus, Bldg. 12, Room 130, Albany, NY 12226



Kathy Hochul, Governor

Roberta Reardon, Commissioner

Smithtown CSD
Patricia Harmon
26 New York Avenue
Smithtown NY 11787

Schedule Year 2025 through 2026
Date Requested 03/18/2026
PRC# 2026900471

Location District Wide
Project ID# 26/27-01
Occupation Type(s) Guards, Security

Notice of Contract Award

New York State Labor Law, Article 9, Section 231.5 requires that certain information regarding the awarding of public work contracts, be furnished to the Commissioner of Labor. One "Notice of Contract Award" (PW 16.9, which may be photocopied), MUST be completed for EACH prime contractor on the above referenced project.

Upon notifying the successful bidder(s) of this building service contract, enter the required information and mail **OR** fax this form to the office shown at the bottom of this notice, **OR** fill out the electronic version via the NYSDOL website.

Contractor Information

All information must be supplied

Federal Employer Identification Number:			
Name:			
Address:			
City:	State:	Zip:	
Amount of Contract:	\$	Occupation(s):	
Approximate Starting Date:	/ /		
Approximate Completion Date:	/ /		

Introduction to the Prevailing Rate Schedule

Introduction

The Labor Law requires public work contractors and subcontractors to pay a service employee under a contract for building service work for a public agency, a wage of not less than the prevailing wage and supplements (fringe benefits) in the locality for the classification(s) in which the worker was employed. Such a public work building service contract must be in excess of one thousand five hundred dollars (\$1,500).

Requesting a Wage Schedule

For every building service contract, the public agency must file a statement identifying the types of employees and work to be performed by submitting a Request for Wage and Supplement Information form (PW 39) to the Bureau of Public Work, either online, by fax, or by mail.

The Commissioner of Labor makes an annual determination of the prevailing rates. This determination is in effect from July 1st through June 30th of the following year.

The Public Agency must include the specifications for each building service contract the PRC number assigned to such contract and stipulation obligating the contractor to pay not less than the wage rates set forth in the Prevailing Wage Schedule issued under that PRC number.

Hours

A building service employee, employed by a contractor, shall work up to eight (8) hours in any one day and up to forty (40) hours in any workweek for the appropriate posted prevailing wage rates. A building service employee who works more than eight (8) hours in any one day or more than forty (40) hours in any workweek shall be paid wages for such overtime at a rate not less than one-and-one-half (1.5) times the prevailing basic cash hourly rate.

Wages and Supplements

The wages and supplements to be paid and/or provided to a building service employee, employed on a public work contract shall be not less than those listed in the Prevailing Rate Schedule.

A supplemental benefit of 'paid time off' shall be provided as paid leave, or converted to an hourly value paid to the employee. If 'paid time off' is converted to an hourly monetary value, such an amount is to be paid in addition to any other hourly supplements required by this schedule.

The hourly value for 'paid time off' would be calculated as follows: hourly wage rate X 8 hours per day X total number of paid days off divided by 2080 hours. For example: \$16.00 per hour wage rate X 8 hours per day = \$128.00; \$128.00 X 5 paid days off = \$640.00; \$640.00 divided by 2080 hours = \$0.31 per hour. The \$0.31 per hour amount would be in addition to any other required supplemental monetary amount paid.

All 'paid time off' provided to part-time employees, shall be prorated (divided, distributed, or assessed proportionately) based on fulltime equivalent hours.

The amount of 'paid time off' for part-time employees, would be calculated as follows: number of part-time weekly hours divided by 40 fulltime weekly hours = percentage of 'paid time off' for part-time employee. For example: a fulltime employee works 40 hours per week and a part-time employee works 30 hours per week (30 hours divided by 40 hours = .75); If a fulltime employee is provided 5 paid vacation days (5 X .75 = 3.75), a part-time employee would be provided 3.75 paid vacation days.

Paid Prenatal Leave

Every employer shall be required to provide to its employees twenty hours of paid prenatal personal leave during any fifty-two week calendar period. Paid prenatal personal leave shall mean leave taken for the health care services received by an employee during their pregnancy or related to such pregnancy, including physical examinations, medical procedures, monitoring and testing, and discussions with a healthcare provider related to the pregnancy. Paid prenatal personal leave may be taken in hourly increments. Benefits for paid prenatal personal leave shall be paid in hourly installments. Employees shall receive compensation at the employee's regular rate of pay, or the applicable minimum wage established by the labor law, whichever is greater, for the use of Paid Prenatal leave.

Payrolls and Payroll Records

Every contractor and subcontractor MUST keep original payrolls or transcripts subscribed and affirmed as true under penalty of perjury. Payrolls must be maintained for at least three (3) years from the projects date of completion. Additionally, as per Article 6 of the Labor Law, contractors and subcontractors are required to establish, maintain, and preserve for not less than six (6) years, contemporaneous, true, and accurate payroll records.

At a minimum, payrolls must show the following information for each person employed on a public work project: Name; Address, Last 4 Digits of Social Security number, Classification(s) in which the worker was employed, Hourly wage rate(s) paid, Supplements paid or provided, and Daily and weekly number of hours worked in each classification.

Payroll records and transcripts are required to be kept on site during all the time that work under that contract is being performed.

NOTE: For more detailed information regarding Article 9 prevailing wage contracts, please refer to "General Provisions of Laws Covering Workers on Article 9 Public Work Building Service Contracts".

If you have any questions concerning the attached schedule or would like additional information, please write to:

New York State Department of Labor
Bureau of Public Work
State Office Campus, Bldg. 12
Albany, NY 12240

OR

Contact the nearest BUREAU of PUBLIC WORK District Office

District Office Locations:	Telephone #	FAX #
Bureau of Public Work - Albany	518-457-2744	518-485-0240
Bureau of Public Work - Binghamton	607-721-8005	607-721-8004
Bureau of Public Work - Buffalo	716-847-7159	716-847-7650
Bureau of Public Work - Garden City	516-228-3915	516-794-3518
Bureau of Public Work - Newburgh	845-568-5287	845-568-5332
Bureau of Public Work - New York City	212-932-2419	212-775-3579
Bureau of Public Work - Patchogue	631-687-4882	631-687-4902
Bureau of Public Work - Rochester	585-258-4505	585-258-4708
Bureau of Public Work - Syracuse	315-428-4056	315-428-4671
Bureau of Public Work - Utica	315-793-2314	315-793-2514
Bureau of Public Work - White Plains	914-997-9507	914-997-9523
Bureau of Public Work - Central Office	518-457-5589	518-485-1870

Suffolk County Article 9

Guards, Security

03/01/2026

JOB DESCRIPTION Guards, Security

DISTRICT 10

ENTIRE COUNTIES

Nassau, Suffolk

WAGES

Per hour: 07/01/2025

Security Guard (Armed) \$ 33.93

Security Guard (Unarmed) \$ 22.62

IMPORTANT INFORMATION:

Article 9 §230.6. "Prevailing wage" means the wage determined by the fiscal officer to be prevailing for the various classes of building service employees in the locality. In no event shall the basic hourly cash rate of pay be less than the statutory minimum wage established by article nineteen of this chapter, or, in a city with a local law requiring a higher minimum wage on city contract work, less than the minimum wage specified in such local law.

SUPPLEMENTAL BENEFITS

Per hour: \$ 2.46

OVERTIME PAY

See (B, B3) on OVERTIME PAGE

HOLIDAY

Paid: See (1) on HOLIDAY PAGE

10-NYS/R&S

Overtime Codes

Following is an explanation of the code(s) listed in the OVERTIME section of each classification contained in the attached schedule. Additional requirements may also be listed in the HOLIDAY section.

NOTE: Supplemental Benefits are 'Per hour worked' (for each hour worked) unless otherwise noted

- (AA) Time and one half of the hourly rate after 7 and one half hours per day
- (A) Time and one half of the hourly rate after 7 hours per day
- (B) Time and one half of the hourly rate after 8 hours per day
- (B1) Time and one half of the hourly rate for the 9th & 10th hours week days and the 1st 8 hours on Saturday.
Double the hourly rate for all additional hours
- (B2) Time and one half of the hourly rate after 40 hours per week
- (B3) Time and one half of the hourly rate after 40 straight hours per week
- (C) Double the hourly rate after 7 hours per day
- (C1) Double the hourly rate after 7 and one half hours per day
- (D) Double the hourly rate after 8 hours per day
- (D1) Double the hourly rate after 9 hours per day
- (E) Time and one half of the hourly rate on Saturday
- (E1) Time and one half 1st 4 hours on Saturday; Double the hourly rate all additional Saturday hours
- (E2) Saturday may be used as a make-up day at straight time when a day is lost during that week due to inclement weather
- (E3) Between November 1st and March 3rd Saturday may be used as a make-up day at straight time when a day is lost during that week due to inclement weather, provided a given employee has worked between 16 and 32 hours that week
- (E4) Sunday may be used as a make-up day at straight time when a day is lost during that week due to inclement weather
- (E5) Double time after 8 hours on Saturdays
- (F) Time and one half of the hourly rate on Saturday and Sunday
- (G) Time and one half of the hourly rate on Saturday and Holidays
- (H) Time and one half of the hourly rate on Saturday, Sunday, and Holidays
- (I) Time and one half of the hourly rate on Sunday
- (J) Time and one half of the hourly rate on Sunday and Holidays
- (K) Time and one half of the hourly rate on Holidays
- (L) Double the hourly rate on Saturday
- (M) Double the hourly rate on Saturday and Sunday
- (N) Double the hourly rate on Saturday and Holidays
- (O) Double the hourly rate on Saturday, Sunday, and Holidays
- (P) Double the hourly rate on Sunday
- (Q) Double the hourly rate on Sunday and Holidays
- (R) Double the hourly rate on Holidays

- (S) Two and one half times the hourly rate for Holidays
- (S1) Two and one half times the hourly rate the first 8 hours on Sunday or Holidays One and one half times the hourly rate all additional hours.
- (T) Triple the hourly rate for Holidays
- (U) Four times the hourly rate for Holidays
- (V) Including benefits at SAME PREMIUM as shown for overtime
- (W) Time and one half for benefits on all overtime hours.
- (X) Benefits payable on Paid Holiday at straight time. If worked, additional benefit amount will be required for worked hours. (Refer to other codes listed.)

Holiday Codes

PAID Holidays:

Paid Holidays are days for which an eligible employee receives a regular day's pay, but is not required to perform work. If an employee works on a day listed as a paid holiday, this remuneration is in addition to payment of the required prevailing rate for the work actually performed.

OVERTIME Holiday Pay:

Overtime holiday pay is the premium pay that is required for work performed on specified holidays. It is only required where the employee actually performs work on such holidays. The applicable holidays are listed under HOLIDAYS: OVERTIME. The required rate of pay for these covered holidays can be found in the OVERTIME PAY section listings for each classification.

Following is an explanation of the code(s) listed in the HOLIDAY section of each classification contained in the attached schedule. The Holidays as listed below are to be paid at the wage rates at which the employee is normally classified.

- (1) None
- (2) Labor Day
- (3) Memorial Day and Labor Day
- (4) Memorial Day and July 4th
- (5) Memorial Day, July 4th, and Labor Day
- (6) New Year's, Thanksgiving, and Christmas
- (7) Lincoln's Birthday, Washington's Birthday, and Veterans Day
- (8) Good Friday
- (9) Lincoln's Birthday
- (10) Washington's Birthday
- (11) Columbus Day
- (12) Election Day
- (13) Presidential Election Day
- (14) 1/2 Day on Presidential Election Day
- (15) Veterans Day
- (16) Day after Thanksgiving
- (17) July 4th
- (18) 1/2 Day before Christmas
- (19) 1/2 Day before New Years
- (20) Thanksgiving
- (21) New Year's Day
- (22) Christmas
- (23) Day before Christmas
- (24) Day before New Year's
- (25) Presidents' Day
- (26) Martin Luther King, Jr. Day
- (27) Memorial Day
- (28) Easter Sunday

(29) Juneteenth

New York State Department of Labor - Bureau of Public Work
State Office Building Campus
Building 12 - Room 130
Albany, New York 12226

REQUEST FOR WAGE AND SUPPLEMENT INFORMATION

As Required by Articles 8 and 9 of the NYS Labor Law

Fax (518) 485-1870 or mail this form for new schedules or for determination for additional occupations.

This Form Must Be Typed

Submitted By:

(Check Only One)

☐

Contracting Agency

☐

Architect or Engineering Firm

☐

Public Work District Office

Date:

A. Public Work Contract to be let by: (Enter Data Pertaining to Contracting/Public Agency)

1. Name and complete address ☐ (Check if new or change)

Telephone

Fax

E-Mail:

2. NY State Units (see Item 5).

☐ 01 DOT

☐ 02 OGS

☐ 03 Dormitory Authority

☐ 04 State University
Construction Fund

☐ 05 Mental Hygiene
Facilities Corp.

☐ 06 OTHER N.Y. STATE UNIT

☐ 07 City

☐ 08 Local School District

☐ 09 Special Local District, i.e.,
Fire, Sewer, Water District

☐ 10 Village

☐ 11 Town

☐ 12 County

☐ 13 Other Non-N.Y. State
(Describe)

3. SEND REPLY TO ☐ (check if new or change)
Name and complete address:

Telephone

Fax

E-Mail:

4. SERVICE REQUIRED. Check appropriate box and provide project information.

☐ New Schedule of Wages and Supplements.

APPROXIMATE BID DATE :

☐ Additional Occupation and/or Redetermination

PRC NUMBER ISSUED PREVIOUSLY FOR
THIS PROJECT :

OFFICE USE ONLY

B. PROJECT PARTICULARS

5. Project Title _____

Description of Work _____

Contract Identification Number _____

Note: For NYS units, the OSC Contract No. _____

6. Location of Project:
Location on Site _____

Route No/Street Address _____

Village or City _____

Town _____

County _____

7. Nature of Project - Check One:

☐

1. New Building

☐

2. Addition to Existing Structure

☐

3. Heavy and Highway Construction (New and Repair)

☐

4. New Sewer or Waterline

☐

5. Other New Construction (Explain)

☐

6. Other Reconstruction, Maintenance, Repair or Alteration

☐

7. Demolition

☐

8. Building Service Contract

8. OCCUPATION FOR PROJECT :

☐ Construction (Building, Heavy
Highway/Sewer/Water)

☐ Tunnel

☐ Residential

☐ Landscape Maintenance

☐ Elevator maintenance

☐ Exterminators, Fumigators

☐ Fire Safety Director, NYC Only

☐ Fuel Delivery

☐ Guards, Watchmen

☐ Janitors, Porters, Cleaners,
Elevator Operators

☐ Moving furniture and
equipment

☐ Trash and refuse removal

☐ Window cleaners

☐ Other (Describe)

9. Does this project comply with the Wicks Law involving separate bidding? YES ☐ NO ☐

10. Name and Title of Requester

Signature



NEW YORK STATE DEPARTMENT OF LABOR
Bureau of Public Work - Debarment List

**LIST OF EMPLOYERS INELIGIBLE TO BID ON OR BE
AWARDED ANY PUBLIC WORK CONTRACT**

Under Article 8 and Article 9 of the NYS Labor Law, a contractor, sub-contractor and/or its successor shall be debarred and ineligible to submit a bid on or be awarded any public work or public building service contract/sub-contract with the state, any municipal corporation or public body for a period of five (5) years from the date of debarment when:

- Two (2) final determinations have been rendered within any consecutive six-year (6) period determining that such contractor, sub-contractor and/or its successor has WILLFULLY failed to pay the prevailing wage and/or supplements;
- One (1) final determination involves falsification of payroll records or the kickback of wages and/or supplements.

The agency issuing the determination and providing the information, is denoted under the heading 'Fiscal Officer'. DOL = New York State Department of Labor; NYC = New York City Comptroller's Office; AG = New York State Attorney General's Office; DA = County District Attorney's Office.

Debarment Database: To search for contractors, sub-contractors and/or their successors debarred from bidding or being awarded any public work contract or subcontract under NYS Labor Law Articles 8 and 9, or under NYS Workers' Compensation Law Section 141-b, access the database at this link: <https://apps.labor.ny.gov/EDList/searchPage.do>

For inquiries please call 518-457-5589.

Article 9

AGENCY	Fiscal Officer	FEIN	EMPLOYER NAME	EMPLOYER DBA NAME	ADDRESS	DEBARMENT START DATE	DEBARMENT END DATE
DOL	DOL		ADESUWA UWUIGBE		320 THROOP AVENUE APT #3BROOKLYN NY 11206	02/16/2024	02/16/2029
DOL	DOL		CHARLES AIBANGBEE		320 THROOP AVE APT #3BROOKLYN NY 11206	02/16/2024	02/16/2029
DOL	NYC	*****5732	COMMERCIAL BUILDING MAINTENANCE CORPORATION		65 BILTMORE DR MASTIC BEACH NY 11951	03/14/2022	03/14/2027
DOL	DOL		CRAIG WICKE		36 OAKWOOD TRAIL S AL MONROE NY 10950	10/29/2025	10/29/2030
DOL	NYC		DAVID PARSONS		200 OAK DR SYOSSET NY 11791	03/14/2022	03/14/2027
DOL	DOL	*****8011	EOCA CLEANING CONTRACTORS INC		320 THROOP AVENUE APT# 3BROOKLYN NY 11206	02/16/2024	02/16/2029
DOL	DOL		PAULINE CHAHALES		935 S LAKE BLVD MAHOPAC NY 10541	05/17/2021	05/17/2026
DOL	DOL	*****9060	PEC GROUP OF N.Y., INC.		935 S LAKE BLVD SUITE 7MAHOPAC NY 10541	05/17/2021	05/17/2026
DOL	DOL		RUSSELL NEEDHAM		532 NEPTUNE AVENUE BROOKLYN NY 11224	01/12/2022	01/12/2027
DOL	DOL	*****7007	SHOREFRONT MENTAL HEALTH BOARD	BROOKLYN BRIGHT	532 NEPTUNE AVENUE BROOKLYN NY 11224	01/12/2022	01/12/2027

**AGREEMENT as of the ____ day of _____ in the year of Two Thousand
Twenty-Six**

BETWEEN the School District:

**SMITHTOWN CENTRAL
SCHOOL DISTRICT
26 NEW YORK AVENUE
SMITHTOWN, NEW YORK 11787**

and the Contractor:

**Form of Agreement for the Smithtown Central School District
2026-2027 School Year**

ARTICLE 1
THE CONTRACT DOCUMENTS

1.1 The Contract Documents consist of this Agreement, Notice to Proposers, Instructions to Proposers, Specifications including but not limited to the terms and conditions, attachments, and Proposal Forms. These form the Contract, and are a part of the Contract as if attached to this Agreement or set forth in full herein. The Contract represents the entire and integrated agreement between the parties hereto and supersedes prior negotiations, representations or agreements, either written or oral.

ARTICLE 2
THE WORK OF THIS CONTRACT

2.1 _____ shall execute the entire work described in the Contract Documents as requested by the School District and as necessary to produce the results intended by the Contract Documents.

ARTICLE 3
TERM OF THIS AGREEMENT

3.1 The date of commencement shall be in effect from the date of the award continuing through June 30, 2027, unless earlier terminated as set forth in the Proposal Specifications attached hereto at Exhibit A and made a part hereof. The Board of Education reserves the right to renew this agreement for additional one-year periods not to exceed five (5) years upon the same terms and conditions subject to approval of the Board of Education, as set forth in the Proposal Specifications. On the anniversary date(s) of the second and any subsequent year of the contract, the awarded vendor may increase prices, subject to the limitations imposed by New York State's property tax cap law, for recurring charges by an amount equal to the current percentage used by the United States Department of Labor Bureau of Labor Statistics New York -Northern New Jersey consumer price index for all Urban Consumers (CPI- U) -May - which is usually published in June of each year, not to exceed 2%. In the event a CPI, as calculated using the above research method, has a negative value, the price of the commodity/service will be reduced equivalent to the calculated value. The District must be notified in writing by the awarded vendor of any request for a price increase at least 60 days before the anniversary date.

ARTICLE 4
CONTRACT SUM

4.1 The School District shall pay the Proposer in accordance with the costs set forth on the Proposal Form attached hereto and made a part hereof.

ARTICLE 5

PAYMENTS

5.1 The School District shall make payments on account of the Contract Sum to _____ as provided in the Proposal Specifications.

ARTICLE 6

MISCELLANEOUS PROVISIONS

6.1 _____ represents and warrants the following to the School District (in addition to any other representations and warranties contained in the Contract Documents) as an inducement to the School District to execute this Agreement, which representations and warranties shall survive the execution, delivery and any renewal of this Agreement, any termination of this Agreement and the final completion of the work:

1. that it is financially solvent, able to pay all debts as they mature and possessed of sufficient working capital to complete the work and perform all obligations hereunder;

2. that it is able to furnish the plant, tools, materials, supplies, equipment and labor required to complete the work and perform its obligations hereunder;

3. that it is authorized to do business in the State of New York and the United States and properly licensed by all necessary governmental and public and quasi-public authorities having jurisdiction over it and over the Agreement;

4. that its execution of this Agreement and its performance thereof is within its duly authorized powers.

ARTICLE 7

TERMINATION OR SUSPENSION

7.1 This Agreement may be terminated by the School District as provided in the Proposal Specifications.

7.2 In executing this Agreement, the parties acknowledge that they have the authority to enter into this Agreement, and that all necessary action has been taken to cause this Agreement to become legal, valid and binding.

7.3 This Agreement may be executed in counterparts, each of which when executed shall be deemed to be an original and all of which together shall constitute a single instrument binding upon the Parties, and facsimile or electronic signatures shall have the same force and effect as an original.

7.4 This Agreement may be delivered by facsimile or electronic transmission. The facsimile or electronic transmission of any signed original document or any retransmission of any signed facsimile or electronic transmission will be deemed the same as delivery of an original.

This Agreement is entered into as of the day and year first written above.

SMITHTOWN CSD

CONTRACTOR

By: _____ By: _____

SUCCESSFUL CONTRACTOR'S ATTESTATION/ CERTIFICATION

_____ certifies that it has carefully read the terms of its Agreement with the Smithtown Central School District and affirms under the penalty of perjury that it is in full compliance with all licensing, staffing and other requirements of the Agreement as set forth therein and is providing the armed security guard services as required therein.

Signature of Proposer: _____

Print Name: _____

Date: _____

Seal (if Corporation)

Sworn to before me this _____ day of _____, 20____

Request for Taxpayer Identification Number and Certification

Give Form to the
requester. Do not
send to the IRS.

► Go to www.irs.gov/FormW9 for instructions and the latest information.

Print or type.
See Specific Instructions on page 3.

1 Name (as shown on your income tax return). Name is required on this line; do not leave this line blank.	
2 Business name/disregarded entity name, if different from above	
3 Check appropriate box for federal tax classification of the person whose name is entered on line 1. Check only one of the following seven boxes. ☐ Individual/sole proprietor or single-member LLC ☐ Limited liability company. Enter the tax classification (C=C corporation, S=S corporation, P=Partnership) ► _____ Note: Check the appropriate box in the line above for the tax classification of the single-member owner. Do not check LLC if the LLC is classified as a single-member LLC that is disregarded from the owner unless the owner of the LLC is another LLC that is not disregarded from the owner for U.S. federal tax purposes. Otherwise, a single-member LLC that is disregarded from the owner should check the appropriate box for the tax classification of its owner. ☐ Other (see instructions) ► _____	4 Exemptions (codes apply only to certain entities, not individuals; see instructions on page 3): Exempt payee code (if any) _____ Exemption from FATCA reporting code (if any) _____ <i>(Applies to accounts maintained outside the U.S.)</i>
5 Address (number, street, and apt. or suite no.) See instructions.	Requester's name and address (optional)
6 City, state, and ZIP code	
7 List account number(s) here (optional)	

Part I Taxpayer Identification Number (TIN)

Enter your TIN in the appropriate box. The TIN provided must match the name given on line 1 to avoid backup withholding. For individuals, this is generally your social security number (SSN). However, for a resident alien, sole proprietor, or disregarded entity, see the instructions for Part I, later. For other entities, it is your employer identification number (EIN). If you do not have a number, see *How to get a TIN*, later.

Note: If the account is in more than one name, see the instructions for line 1. Also see *What Name and Number To Give the Requester* for guidelines on whose number to enter.

Social security number											
				-				-			
or											
Employer identification number											
					-						

Part II Certification

Under penalties of perjury, I certify that:

1. The number shown on this form is my correct taxpayer identification number (or I am waiting for a number to be issued to me); and
2. I am not subject to backup withholding because: (a) I am exempt from backup withholding, or (b) I have not been notified by the Internal Revenue Service (IRS) that I am subject to backup withholding as a result of a failure to report all interest or dividends, or (c) the IRS has notified me that I am no longer subject to backup withholding; and
3. I am a U.S. citizen or other U.S. person (defined below); and
4. The FATCA code(s) entered on this form (if any) indicating that I am exempt from FATCA reporting is correct.

Certification instructions. You must cross out item 2 above if you have been notified by the IRS that you are currently subject to backup withholding because you have failed to report all interest and dividends on your tax return. For real estate transactions, item 2 does not apply. For mortgage interest paid, acquisition or abandonment of secured property, cancellation of debt, contributions to an individual retirement arrangement (IRA), and generally, payments other than interest and dividends, you are not required to sign the certification, but you must provide your correct TIN. See the instructions for Part II, later.

Sign Here	Signature of U.S. person ►	Date ►
-----------	----------------------------	--------

General Instructions

Section references are to the Internal Revenue Code unless otherwise noted.

Future developments. For the latest information about developments related to Form W-9 and its instructions, such as legislation enacted after they were published, go to www.irs.gov/FormW9.

Purpose of Form

An individual or entity (Form W-9 requester) who is required to file an information return with the IRS must obtain your correct taxpayer identification number (TIN) which may be your social security number (SSN), individual taxpayer identification number (ITIN), adoption taxpayer identification number (ATIN), or employer identification number (EIN), to report on an information return the amount paid to you, or other amount reportable on an information return. Examples of information returns include, but are not limited to, the following.

- Form 1099-INT (interest earned or paid)

- Form 1099-DIV (dividends, including those from stocks or mutual funds)
- Form 1099-MISC (various types of income, prizes, awards, or gross proceeds)
- Form 1099-B (stock or mutual fund sales and certain other transactions by brokers)
- Form 1099-S (proceeds from real estate transactions)
- Form 1099-K (merchant card and third party network transactions)
- Form 1098 (home mortgage interest), 1098-E (student loan interest), 1098-T (tuition)
- Form 1099-C (canceled debt)
- Form 1099-A (acquisition or abandonment of secured property)

Use Form W-9 only if you are a U.S. person (including a resident alien), to provide your correct TIN.

If you do not return Form W-9 to the requester with a TIN, you might be subject to backup withholding. See What is backup withholding, later.